

Sanjay Parashar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 March 2014 · WRIT - C No. - 16780 of 2014 · **Writ dismissed; relegated to Clause 6.5 alternative remedy**

HEADNOTE

A writ petition questioning the correctness of electricity bills is not entertainable where Clause 6.5 of the Electricity Supply Code, 2005 supplies an alternative remedy before the competent authority. The petition was dismissed on that ground.

FACTUAL SUMMARY

Sanjay Parashar petitioned the Allahabad High Court against the State of Uttar Pradesh and three others, including the distribution licensee, over the correctness of his electricity bills. Counsel for the licensee sought time for instructions. A Division Bench of Vineet Saran and Attau Rahman Masoodi JJ. held the dispute was not a recovery matter, declined roster jurisdiction, and directed listing before the appropriate Bench, where it was heard by Amreshwar Pratap Sahi and Vivek Kumar Birla JJ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for billing dispute

HOLDING

A writ petition raising a grievance as to the correctness of electricity bills or otherwise is not to be entertained, the petitioner having an alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005 before the competent authority. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ petition questioning the correctness of electricity bills is not entertainable where Clause 6.5 of the Electricity Supply Code, 2005 supplies an alternative remedy before the competent authority. The petition was dismissed on that ground. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS

Merits left to the Clause 6.5 competent authority. ¶ 3